

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1832

By: Stanley of the Senate

and

Smith of the House

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9 An Act relating to income tax; amending 68 O.S. 2021,
10 Section 2368.28, which relates to income tax refund
11 donation to the Indigent Veteran Burial Program;
12 reauthorizing donation for certain tax years;
13 amending 72 O.S. 2021, Section 63.19, which relates
14 to the Oklahoma Department of Veterans Affairs
15 Equipment and Capital Improvement Program;
16 reauthorizing donation for certain tax years;
17 updating statutory reference; updating statutory
18 language; providing an effective date; and declaring
19 an emergency.

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24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 2368.28, is
amended to read as follows:

Section 2368.28. A. Each state individual income tax return
form for tax years ~~which begin after December 31, 2016~~ 2017 through
2020 and tax year 2026 and subsequent tax years, and each state
corporate tax return form for tax years ~~beginning after December 31,~~

1 ~~2016~~ 2017 through 2020 and tax year 2026 and subsequent tax years,
2 shall contain a provision to allow a donation from a tax refund for
3 the benefit of the Oklahoma Department of Veterans Affairs Indigent
4 Veteran Burial Program.

5 B. All monies generated pursuant to subsection A of this
6 section shall be paid to the State Treasurer by the Oklahoma Tax
7 Commission and placed to the credit of the Indigent Veteran Burial
8 Revolving Fund created in subsection C of this section.

9 C. There is hereby created in the State Treasury a revolving
10 fund to be designated the "Indigent Veteran Burial Revolving Fund"
11 and administered by the Oklahoma Department of Veterans Affairs.
12 The fund shall be a continuing fund, not subject to fiscal year
13 limitations, and shall consist of all the monies received pursuant
14 to the provisions of subsection A of this section and any donations
15 received from any individuals or organizations. All monies accruing
16 to the credit of the fund are appropriated and may be budgeted and
17 expended by the Oklahoma Department of Veterans Affairs to provide
18 reimbursement to a cemetery or funeral home for costs incurred
19 burying an indigent veteran; provided, the maximum reimbursement
20 shall not exceed Five Hundred Dollars (\$500.00) per veteran and
21 total reimbursements made in calendar year 2017 shall be limited to
22 Twenty Thousand Dollars (\$20,000.00). Expenditures from the fund
23 shall be made upon warrants issued by the State Treasurer against
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1 claims filed as prescribed by law with the Director of the Office of
2 Management and Enterprise Services for approval and payment.

3 D. If a taxpayer makes a donation pursuant to subsection A of
4 this section in error, such taxpayer may file a claim for refund at
5 any time within three (3) years from the due date of the tax return.
6 Such claims shall be filed pursuant to the provisions of Section
7 2373 of ~~Title 68 of the Oklahoma Statutes~~ this title. Prior to the
8 apportionment set forth in this section, an amount equal to the
9 total amount of refunds made pursuant to this subsection during any
10 one (1) year shall be deducted from the total donations received
11 pursuant to this section during the following year and such amount
12 deducted shall be paid to the State Treasurer and placed to the
13 credit of the Income Tax Withholding Refund Account.

14 E. Pursuant to Section 2368.18 of this title, the income tax
15 checkoff contained in this section is hereby reauthorized upon the
16 effective date of this act.

17 SECTION 2. AMENDATORY 72 O.S. 2021, Section 63.19, is
18 amended to read as follows:

19 Section 63.19. A. The Oklahoma Tax Commission shall include on
20 each state individual income tax return form for tax years ~~beginning~~
21 ~~after December 31, 2001~~ 1994 through 2008, and each state corporate
22 tax return form for tax years ~~beginning after December 31, 2001~~ 1994
23 through 2008 and tax year 2026 and subsequent tax years, an
24 opportunity for the taxpayer to donate from a tax refund for the

1 benefit of the Oklahoma Department of Veterans Affairs Equipment and
2 Capital Improvement Program.

3 B. The monies generated from donations made pursuant to
4 subsection A of this section shall be used by the Oklahoma
5 Department of Veterans Affairs to purchase equipment and develop
6 capital improvement projects and to acquire properties for expanding
7 or improving existing projects, or for future projects to include
8 site acquisition, architectural plan development and construction.

9 C. Except as otherwise provided for in this section, all monies
10 generated pursuant to subsection A of this section shall be paid to
11 the State Treasurer and placed to the credit of the Capital
12 Improvement Program Revolving Fund.

13 D. There is hereby created in the State Treasury a revolving
14 fund for the Oklahoma Department of Veterans Affairs to be
15 designated the "Capital Improvement Program Revolving Fund". The
16 fund shall be a continuing fund not subject to fiscal year
17 limitations and shall consist of all monies received pursuant to the
18 provisions of this section. The Oklahoma Department of Veterans
19 Affairs is hereby authorized to invest all or part of the monies of
20 the fund in securities and any interest or dividends accruing from
21 the investments and any monies generated at the time of redemption
22 of the investments shall be deposited in the Capital Improvement
23 Program Revolving Fund. All monies accruing to the credit of the
24 fund are hereby appropriated and may be budgeted and expended by the

Oklahoma Department of Veterans Affairs for the purposes stated in subsection B of this section. Any monies withdrawn from the fund by the Oklahoma Department of Veterans Affairs for investment pursuant to this section shall be deemed to be for the purpose of equipment purchases or enhancing the veterans capital improvement programs of ~~the State of Oklahoma~~ this state. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

E. If a taxpayer makes a donation pursuant to subsection A of this section in error, the taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of Title 68 of the Oklahoma Statutes and, if allowed, shall be paid pursuant to the provisions of ~~said~~ such section. Prior to the apportionment set forth in subsection C of this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted during the following year, and the amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

F. Pursuant to Section 2368.18 of this title, the income tax checkoff contained in this section is hereby reauthorized upon the effective date of this act.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated 04/23/2026 - DO PASS.